

HOUSE No. 4396

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, August 18, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1849) of Jay D. Livingstone, Lindsay N. Sabadosa and others for legislation to repeal certain archaic laws and to establish a permanent law revision commission (including members of the General Court) to examine common laws and statutes, reports recommending that the accompanying bill (House, No. 4396) ought to pass.

For the committee,

MICHAEL S. DAY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to archaic laws.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 3 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 76. (a) There shall be a permanent law revision commission consisting of: the
4 chairs of the joint committee on the judiciary or their designees, who shall serve as co-chairs; the
5 attorney general or a designee; 4 attorneys admitted to practice law in the commonwealth, 1 of
6 whom shall be appointed by the senate president, 1 of whom shall be appointed by the speaker of
7 the house of representatives, 1 of whom shall be appointed by the minority leader of the senate
8 and 1 of whom shall be appointed by the minority leader of the house of representatives; 1
9 person appointed by the Massachusetts District Attorneys Association; 1 person appointed by the
10 committee for public counsel services; and 4 persons appointed by the governor, 1 of whom shall
11 be a retired judge, 2 of whom shall be faculty members of accredited law schools in the
12 commonwealth and 1 of whom shall be a historian with expertise in the laws of the
13 commonwealth.

(b) The counsel to the senate and the counsel to the house of representatives shall jointly provide personnel necessary to coordinate the activities of the commission and assist the commission in drafting legislative proposals, as requested.

(c) The appointed members of the commission shall serve staggered 4-year terms. Vacancies in the membership of the commission shall be filled by the original appointing authority for the balance of the unexpired term.

(d) The commission shall: (i) examine the common law, statutes of the commonwealth and judicial decisions for the purpose of identifying defects and anachronisms in the law and recommending needed reforms; (ii) receive and consider proposed changes in the law recommended by the American Law Institute, the National Conference of Commissioners on Uniform State Laws, any bar association and any other learned body; (iii) receive and consider suggestions as to defects and anachronisms in the law from judges, justices, public officials, lawyers and the public; (iv) recommend changes in the law to modify or eliminate antiquated and inequitable rules of law and to bring the law into harmony with modern conditions; (v) recommend the express repeal of statutes repealed by implication or held unconstitutional by a state or federal court; (vi) evaluate and make recommendations on the consolidation of session laws into the General Laws; and (vii) make recommendations to improve the openness and accessibility of state laws, including the use of open-source software tools.

(e) The commission shall meet not less than 4 times annually. At the close of each regular session of the general court, the commission shall submit a report of its findings and recommendations, including drafts of any proposed legislation, to the clerks of the senate and the

35 house of representatives, the house and senate committees on ways and means and the joint
36 committee on the judiciary.

37 SECTION 2. The initial terms of the first members of the law revision commission shall
38 be staggered as follows: the attorney appointed by the speaker of the house of representatives,
39 attorney appointed by the senate president, attorney appointed by the minority leader of the
40 senate and attorney appointed by the minority leader of the house of representatives shall serve
41 initial terms of 4 years; the persons appointed by the governor shall serve initial terms of 3 years;
42 and the person appointed by the Massachusetts District Attorneys Association and person
43 appointed by the committee for public counsel services shall serve initial terms of 2 years.